

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #08	CCRB Case #: 202101319	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Saturday, 02/27/2021 8:30 PM, Saturday, 02/27/2021 10:24 PM	Location of Incident: § 87(2)(b) 77th Precinct stationhouse	18 Mo. SOL 8/27/2022	Precinct: 77
Date/Time CV Reported Mon, 03/01/2021 10:34 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 03/01/2021 10:34 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. DT3 Antonio Zorrilla	02744	961480	NBBN MAJOR
3. An officer			
4. SGT DS Steven Zanca	04377	937781	NBBN MAJOR
5. SGT DS Michael Weber	04578	929343	NBBN MAJOR
6. DT3 John Lamariana	02346	949194	GVSD Z1 VRTF

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Christian Lopez	24864	955083	INT FIO PRG
2. PO Alexis Smith	07229	952250	M COURT
3. PO Tomas Krohn	26766	965247	GVSD Z1 VRTF
4. DT3 William Pugliese	04507	953278	NBBN MAJOR
5. DT3 Vincent Gambino	01360	954841	NBBN MAJOR
6. DT3 Kevin McGinn	04421	958902	NBSI MAJOR
7. SGT Michael Lassen	00547	951899	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
8. DT3 Anibal Torres	02123	947862	NBBN MAJOR
9. SGT Avinash Patel	05322	940551	INT FIO PRG
10. PO Mohamed Elhanafi	15082	955897	GVSD Z1 VRTF
11. DT3 Jeffrey Mathis	03297	949279	BK SVS
12. SGT Nathan Nelson	02565	948104	INT FIO PRG
13. DT3 James Czerw	02908	959575	INT FIO PRG
14. DT1 Michael Scoloveno	05901	931194	NBBN MAJOR
15. PO Jarrett Nadal	19273	958970	GVSD Z1 VRTF
16. DT3 Julio Micheli	00573	949330	NARCBBN
17. DT3 Warren Rohan	02378	926018	NBBN MAJOR
18. DT3 Orlando Sanchez	07111	935691	NBBN MAJOR

Officer(s)	Allegation	Investigator Recommendation
A . SGT DS Michael Weber	Abuse: Sergeant Michael Weber entered § 87(2)(b) in Brooklyn.	A . Miscellaneous - Subject Retired
B . SGT DS Steven Zanca	Abuse: Sergeant Steven Zanca entered § 87(2)(b) in Brooklyn.	B . Substantiated
C . SGT DS Michael Weber	Abuse: Sergeant Michael Weber searched § 87(2)(b) in Brooklyn.	C . Miscellaneous - Subject Retired
D . SGT DS Steven Zanca	Abuse: Sergeant Steven Zanca searched § 87(2)(b) in Brooklyn.	D . Substantiated
E . Officers	Force: At § 87(2)(b) in Brooklyn, officers pointed their guns at individuals.	E . Officer(s) Unidentified
F . An officer	Discourtesy: At § 87(2)(b) in Brooklyn, an officer spoke discourteously to § 87(2)(b)	F . Officer(s) Unidentified
G . DT3 John Lamariana	Force: At § 87(2)(b) in Brooklyn, Detective John Lamariana used physical force against § 87(2)(b)	G . Unsubstantiated
H . An officer	Force: At § 87(2)(b) in Brooklyn, an officer used physical force against § 87(2)(b)	H . Officer(s) Unidentified
I . DT3 John Lamariana	Force: At § 87(2)(b) in Brooklyn, Detective John Lamariana used physical force against § 87(2)(b)	I . Unsubstantiated
J . An officer	Force: At § 87(2)(b) in Brooklyn, an officer used physical force against § 87(2)(b)	J . Officer(s) Unidentified
K . SGT DS Michael Weber	Abuse: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber frisked § 87(2)(b)	K . Miscellaneous - Subject Retired
L . SGT DS Michael Weber	Abuse: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber frisked § 87(2)(b)	L . Miscellaneous - Subject Retired
M . SGT DS Michael Weber	Abuse: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber frisked § 87(2)(b)	M . Miscellaneous - Subject Retired
N . SGT DS Michael Weber	Abuse: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber frisked individuals.	N . Miscellaneous - Subject Retired
O . SGT DS Michael Weber	Abuse: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber searched § 87(2)(b)	O . Miscellaneous - Subject Retired
P . SGT DS Michael Weber	Abuse: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber searched § 87(2)(b)	P . Miscellaneous - Subject Retired
Q . SGT DS Michael Weber	Abuse: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber searched § 87(2)(b)	Q . Miscellaneous - Subject Retired

Officer(s)	Allegation	Investigator Recommendation
R . SGT DS Michael Weber	Abuse: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber searched individuals.	R . Miscellaneous - Subject Retired
S . Officers	Abuse: At § 87(2)(b) in Brooklyn, officers threatened to seize § 87(2)(b) property.	S . Officer(s) Unidentified
T . Officers	Abuse: At § 87(2)(b) in Brooklyn, officers damaged individuals' property.	T . Officer(s) Unidentified
U . An officer	Off. Language: An officer made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	U . Officer(s) Unidentified
V . An officer	Discourtesy: At § 87(2)(b) in Brooklyn, an officer spoke discourteously to § 87(2)(b)	V . Officer(s) Unidentified
W . DT3 Antonio Zorrilla	Abuse: At the 77th Precinct stationhouse, Detective Antonio Zorrilla seized § 87(2)(b) property.	W . Exonerated
X . DT3 Antonio Zorrilla	Abuse: At the 77th Precinct stationhouse, Detective Antonio Zorrilla seized § 87(2)(b) property.	X . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint via the CCRB's online website on March 1, 2021.

On February 27, 2021, Sgt. Michael Weber and Sgt. Steven Zanca of the Narcotics Borough Brooklyn North Violent Crimes Unit (formerly the NYPD's "Gang Squad") supervised a team of officers assigned to the Violent Crimes Unit (including Det. Antonio Zorrilla), officers assigned to the Gun Violence Suppression Division (including Det. John Lamariana), and Field Intelligence Officers from the 102nd Precinct. At approximately 8:30 PM on February 27, 2021, under Sgt. Weber and Sgt. Zanca's mutual supervision, this team entered and searched § 87(2)(b) in Brooklyn (**Allegations A and C: Abuse of Authority, Subject Retired; Allegations B and D: Abuse of Authority, Substantiated**).

Present at this location, attending a party, were § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and at least nine other civilians. Officers allegedly pointed guns at individuals (**Allegation E: Force, Officers Unidentified**). An officer allegedly said to § 87(2)(b) "Shut the fuck up" (**Allegation F: Discourtesy, Officer Unidentified**). Det. Lamariana and another officer took § 87(2)(b) to the ground and allegedly punched him (**Allegations G and I: Force, Unsubstantiated; Allegations H and J: Force, Officer Unidentified**). Det. Zorrilla arrested § 87(2)(b) and § 87(2)(b). At Sgt. Weber's instruction, all civilians who were not arrested were frisked and searched (**Allegations K through R: Abuse of Authority, Subject Retired**). Officers allegedly threatened to seize § 87(2)(b) cellphone (**Allegation S: Abuse of Authority, Officers Unidentified**) and officers allegedly threw individuals' property, including bags, clothes, and a birthday cake, into the garbage (**Allegation T: Abuse of Authority, Officers Unidentified**). Additionally, an officer allegedly referred to § 87(2)(b) as a "bitch" and as a "pussy" (**Allegation U: Offensive Language, Officer Unidentified; Allegation V: Discourtesy, Officer Unidentified**).

At approximately 10:24 PM, at the 77th Precinct stationhouse, Det. Zorrilla allegedly seized property belonging to § 87(2)(b) (**Allegation W: Abuse of Authority, Exonerated; Allegation X: Abuse of Authority, Unsubstantiated**).

Det. Zorrilla arrested both § 87(2)(b) and § 87(2)(b) for possession of a firearm recovered from the apartment in question. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] was arrested on an open warrant. Det. Zorrilla issued summonses for possession of marijuana to all other civilians present during this incident.

§ 87(2)(b) did not cooperate with the investigation and did not provide a statement. The investigation obtained statements from § 87(2)(b) and § 87(2)(b).

There is no video associated with this incident. No surveillance video was available, the officers involved were not assigned Body-Worn Cameras (Board Review 01), and stationhouse video was not requested.

This case was reassigned to SI Ross on April 12, 2022.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Michael Weber entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Sergeant Steven Zanca entered § 87(2)(b)

in Brooklyn.

Allegation (C) Abuse of Authority: Sergeant Michael Weber searched § 87(2)(b)

in Brooklyn.

Allegation (D) Abuse of Authority: Sergeant Steven Zanca searched § 87(2)(b)

in Brooklyn.

It is undisputed that Sgt. Weber, Sgt. Zanca, and their officers entered and searched § 87(2)(b) in Brooklyn. It is further undisputed that the partygoers at this location had rented the apartment via Airbnb.

§ 87(2)(b) and § 87(2)(b) both stated that the apartment had been rented, via Airbnb, for § 87(2)(b) birthday. § 87(2)(b) stated that § 87(2)(b) her boyfriend, rented the apartment for a total of five days, beginning on February 25, 2021. § 87(2)(b) also stated that the apartment was rented via Airbnb. However, § 87(2)(b) stated that he rented the apartment on § 87(2)(b) behalf. § 87(2)(b) never provided the CCRB with any record of the Airbnb rental.

§ 87(2)(b) and § 87(2)(b) each described the officers' entry. § 87(2)(b) stated that there were fewer than 20 individuals present in the apartment on the evening of February 27, 2021. She stated that after she arrived, an unidentified male partygoer departed from the apartment. § 87(2)(b) reported that § 87(2)(b) "did not trust" this individual and later suspected that he reported to police the presence of a firearm in the apartment. Shortly after this individual departed – § 87(2)(b) did not know specifically how much time elapsed – the partygoers heard a knock at the apartment door, but there was no audible statement from outside of the apartment. § 87(2)(b) looked through the peephole and observed multiple males in plainclothes. § 87(2)(b) saw no indication that these were police officers but, when a harder knocking followed, she surmised that they were police officers. None announced themselves as such. Either § 87(2)(b) or § 87(2)(b) opened the apartment door. Without any discussion whatsoever, approximately fifteen male plainclothes officers entered the apartment. No officer asked permission to enter. Officers went downstairs to the lower level, but § 87(2)(b) remained on the main floor. She believed that officers searched the lower level, but she did not know specifically where officers searched.

§ 87(2)(b) stated that as partygoers arrived and the party began, § 87(2)(b) was in the basement. From there, he heard officers knocking loudly at the apartment door, and heard an officer say through the door, "Police." § 87(2)(b) also heard § 87(2)(b) ask if the officers had a warrant. § 87(2)(b) then heard officers enter the apartment. Subsequently, the officers searched every room of the apartment. However, § 87(2)(b) could not recall details of this search because he was "in shock."

§ 87(2)(b) stated that he was in a bathroom when he heard a loud banging at the apartment door. Officers initially issued no verbal commands. § 87(2)(b) heard additional banging on the door, and heard officers say, "NYPD. Open the door." § 87(2)(b) then heard officers entering the apartment. From the bathroom, § 87(2)(b) heard § 87(2)(b) ask, "What are you guys doing? Do you have a warrant? What is the purpose of your visit?" and heard § 87(2)(b) ask, "Where's your warrant?" However, the officers did not explain why they were present or name any individual whom they sought.

§ 87(2)(b) stated in her initial online complaint that officers gained access to the building with a keypad code and then entered the apartment without any prior notice.

Det. Zorrilla, the lead investigator for this entry and search, explained what led the officers to enter

§ 87(2)(b) on the evening in question.

On February 26, 2021, at an unknown time, Det. Zorrilla received a phone call from the FIO sergeant of a command in Queens. This was possibly Sgt. Nathan Nelson of the 102nd Precinct, but Det. Zorrilla was uncertain. He did not remember what time this phone call took place. The FIO sergeant needed to contact someone in Brooklyn North because he had information about a crime in Brooklyn North, and the FIO sergeant worked in Queens.

The FIO sergeant § 87(2)(e), § 87(2)(f)

Det. Zorrilla received no information about who was the owner of the building or apartment in question, or who resided there. The FIO sergeant did not provide information about any other criminal activity at the location in question – only that there was to be a gang party and that § 87(2)(b) would have a firearm.

After speaking with the FIO sergeant via telephone, on February 26, 2021, during daylight hours, Det. Zorrilla visited § 87(2)(b) in Brooklyn. The building was a “brownstone” with multiple units. Det. Zorrilla did not observe any noteworthy activity at the location that time. He rang a doorbell in hopes of speaking with the landlord. He then encountered two individuals who were entering the building. He was not familiar with them. Det. Zorrilla identified himself as a police officer and asked if either individual had a phone number for the owner of the building. One individual provided a phone number at which the owner of the building could be reached. After speaking with Det. Zorrilla, the two individuals entered the building and then entered the first apartment on the left on the first floor – § 87(2)(b). Det. Zorrilla did not have any other conversation or exchange any other information with those individuals at this time. He was only trying to obtain contact information for the landlord.

Det. Zorrilla wished to reach the landlord to obtain consent to enter the location because he was investigating a gang party and the presence of a firearm. There was no other reason Det. Zorrilla wished to contact the landlord.

On the evening of February 26, 2021, the FIO sergeant from Queens sent Det. Zorrilla a photo of § 87(2)(b). Det. Zorrilla recognized § 87(2)(b) as one of the individuals whom he had encountered that day at § 87(2)(b). § 87(2)(b) himself had provided the phone number for the landlord. Det. Zorrilla recalled that § 87(2)(b) had entered § 87(2)(b) and therefore Det. Zorrilla was able to establish the specific location of the party that would take place the following evening.

Also on February 26, 2021, Det. Zorrilla called the landlord. (As of the date of the CCRB interview, Det. Zorrilla did not remember or have access to contact information for the landlord. Det. Zorrilla later provided the CCRB with an image of the passport of § 87(2)(b) the individual he described as the “landlord.”) Det. Zorrilla informed the landlord of the party to take place the following day, and of the suspected presence of a firearm. The landlord gave consent for officers to enter and search the apartment. The landlord also said that during the COVID pandemic, the renters were not allowed to have more than eight people in the apartment together. They were not allowed to have a party. The landlord asked Det. Zorrilla to remove partygoers from the apartment for that reason. The landlord did not make any other complaint about the behavior of the individuals staying in the apartment. The landlord also provided Det. Zorrilla with the keypad codes to enter the building and § 87(2)(b). Det. Zorrilla emailed a consent form to the landlord, which the landlord completed and returned via email on

February 27, 2021 (Board Review 02). The form was signed by § 87(2)(b)

No officer ever obtained consent to enter the apartment from any other person – only this individual, whom Det. Zorrilla believed to be the landlord. Det. Zorrilla did not know if the landlord lived in § 87(2)(b) or if they were renting the apartment out to other occupants. Det. Zorrilla did not learn who lived in § 87(2)(b). He did not remember learning that the apartment was being rented out as an Airbnb. He did not learn the nature of § 87(2)(b) relationship to the apartment.

The following day, February 27, 2021, Det. Zorrilla informed Sgt. Weber of the status of his investigation. Det. Zorrilla said that there would be a gang party, that there would be a firearm at the location, and that he had obtained consent to enter from the landlord. Det. Zorrilla showed Sgt. Weber the consent form and informed Sgt. Weber that the individual who signed the form was “the owner of the apartment” or “landlord.” Det. Zorrilla did not inform Sgt. Weber whether this individual lived in the apartment or was renting the apartment out to someone else.

Officers never obtained a search warrant for § 87(2)(b). They did not have an arrest warrant for anyone at the location. They never received a 911 call pertaining to any incident at the location.

On February 27, 2021, Det. Zorrilla and other officers from the Violent Crimes Unit met for a tactical meeting to plan an operation at § 87(2)(b). Also present were the FIO sergeant from Queens and another FIO from his command, as well as officers from Gun Violence Suppression Division, who joined to provide additional manpower. A tactical plan was generated regarding this operation (Board Review 03; pages 2-4). No other document was prepared in regards.

The VCU supervisors at the meeting were Sgt. Weber and Sgt. Zanca. Sgt. Weber and Sgt. Zanca shared supervisory duties for this investigation and the ensuing operation, described below. However, Det. Zorrilla worked more closely with Sgt. Weber. Det. Zorrilla did not know if either sergeant discussed this operation with a lieutenant or other higher-ranking officer.

All the officers present at the tactical meeting then went to the vicinity of § 87(2)(b). The supervisors for the operation were Sgt. Weber and Sgt. Zanca. Det. Zorrilla did not believe any lieutenant or higher-ranking officer was present.

Officers waited in vehicles near the end of the block. The FIO sergeant from Queens and another FIO from his command also came to the location. § 87(2)(e), § 87(2)(f)

Having received this information, at approximately 8:30 PM, the officers “moved in.” Det. Zorrilla entered the building via the front entrance with all the officers present. They all entered via the front door, together. Officers used the keypad codes to unlock the front door and the door to § 87(2)(b). However, the apartment door was locked from the inside with a swing bar. Officers announced police presence and gave orders to open the door. After approximately five to ten seconds, someone inside opened the door.

Det. Zorrilla and all the other officers on scene immediately entered the apartment. Det. Zorrilla observed 30 or more civilians present in the apartment. On the main floor, Det. Zorrilla saw a

kitchen and a staircase leading downstairs. Det. Zorrilla immediately went downstairs, § 87(2)(e), § 87(2)(f) [REDACTED]. As he descended the stairs, he again announced police presence. Upon entering the basement, he saw five males running to the rear of the apartment. Det. Zorrilla saw a gun on the floor and ran past it. § 87(2)(e), § 87(2)(f) [REDACTED]. Someone had apparently discarded it, but Det. Zorrilla did not see who had done so. The individuals fleeing to the rear were apprehended without further incident.

Subsequently, Det. Zorrilla observed marijuana in plain view “all over” the apartment. Marijuana was illegal at this time. No partygoer acknowledged ownership of the marijuana. Once the scene was made safe, officers searched the entire apartment. They searched every room. They opened closets, cabinets, and dresser drawers. They had discovered a gun and marijuana within the apartment and had consent from the landlord to search. They were searching for any additional contraband or firearm. There may have been another gun in the apartment, but Det. Zorrilla had no specific information about any other gun on the premises. In his experience as a police officer, when Det. Zorrilla had found a firearm at a gang party, there was likely to be more than one present. He stated that gang members usually do music videos “in an Airbnb” with firearms. Ultimately, the search of the apartment yielded no weapon or contraband beyond the gun and marijuana mentioned above.

Det. Zorrilla prepared a DD5 pertaining to the apprehension of § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] (Board Review 04; page 12). A request for any other pertinent DD5s is overdue and pending as of the writing of this report.

Sgt. Weber, the supervisor with whom Det. Zorrilla reported working most closely, is now retired from NYPD service and was thus unavailable for an interview (Board Review 05).

Sgt. Zanca started that prior to the incident in question, information was relayed to the NBBN VCU office from a 102nd Precinct FIO, § 87(2)(e), § 87(2)(f) [REDACTED].

All officers present in the VCU office were apprised of this information collectively. The only supervisors involved in these discussions were Sgt. Zanca and Sgt. Weber. No lieutenant or higher-ranking officer was involved at any point. Sgt. Weber and Sgt. Zanca were the supervisors directing all the actions which followed. Neither worked more closely with Det. Zorrilla, the lead investigator, than the other. Neither took a leading role regarding the actions taken pursuant to Det. Zorrilla’s investigation; they shared responsibility equally.

Det. Zorrilla and other officers then conducted surveillance at § 87(2)(b) [REDACTED]. Sgt. Zanca was not present and learned about the results of their surveillance at a tactical meeting on February 27, 2021. Sgt. Zanca learned that the surveilling officers had observed the informant and the individual suspected to be in possession of a firearm § 87(2)(b) [REDACTED] entering § 87(2)(b) [REDACTED].

Sgt. Zanca also learned that Det. Zorrilla, the assigned investigator, had reached out to the building’s management company. The apartment in question was being rented out as an Airbnb. Det. Zorrilla had emailed a Consent to Search form to the apartment owner, who had signed and returned the paperwork prior to the tactical meeting. Sgt. Zanca learned that the apartment owner had said that the Airbnb guests were not allowed to host a large party, which was in violation of the “contract that had been signed.”

After the tactical meeting, officers caravanned to § 87(2)(b) Sgt. Zanca did not know of any officer in a car being in communication with anyone in the party. § 87(2)(e), § 87(2)(f)

Officers then exited their vehicles and approached § 87(2)(b) The front door, which was unlocked, led into a lobby. Four to five officers entered the building ahead of Sgt. Zanca, who stood just outside the lobby. Sgt. Zanca did not remember which officers were positioned ahead of him, nearer to the apartment door. Some officers remained on the street to perform front security.

The door to the apartment in question was the first door on the left after entering the building – § 87(2)(b) From his position just outside of the lobby, Sgt. Zanca watched as officers knocked at the apartment door. Sgt. Zanca did not remember which officer was at the door.

Someone within the apartment opened the door right away. Officers near the door announced police presence. Additionally, these officers' shields were displayed, their ballistic vests were marked "POLICE," and some wore "raid jackets" (marked NYPD windbreakers). Someone within the apartment attempted to push the door closed, but officers moved into the doorway and held the door open.

There was no conversation about consent to enter the apartment. Officers had previously obtained consent from the owner of the apartment. Officers were not in possession of a search warrant for the location or an arrest warrant for anyone within. Sgt. Zanca was unaware of any 311 complaint or 911 call regarding this location.

Sgt. Zanca followed the four or five officers ahead of him into the apartment. He and other officers recognized § 87(2)(b) from the photograph they had been provided and pursued § 87(2)(b) into the basement when he fled downstairs. The officers apprehended § 87(2)(b) in the rear and brought him into the basement, where a gun had been discarded.

Sgt. Zanca and his officers remained on scene, in the apartment, for approximately two hours. Sgt. Zanca believed he moved up and down the stairs between the apartment's two levels during this period of time but did not remember specifically. Officers had to "freeze" the apartment because a firearm had been discarded and needed to be processed properly. An evidence search was then conducted in the basement, where the firearm had been recovered. Sgt. Zanca did not search; other officers did so under his supervision. Officers searched within a couch, in the corners of the room, and behind furniture: "the general landscape of the basement." Sgt. Zanca believed it was possible that officers searched within cabinets and drawers, but he did not remember specifically. Sgt. Zanca did not remember any other weapon or contraband being recovered within the apartment. He did not know if officers searched the main floor of the apartment, upstairs.

The investigation obtained a statement from § 87(2)(b) the individual who signed the consent form (Board Review 06). § 87(2)(b) was formerly employed as the property manager for § 87(2)(b) in Brooklyn and confirmed that § 87(2)(b) was formerly listed on Airbnb. In late February of 2021, a police officer called § 87(2)(b) and asked if someone was staying in § 87(2)(b) The officer asked for consent to enter the apartment. § 87(2)(b) consulted with the landlord – an individual named § 87(2)(b) with whom § 87(2)(b) is no longer in contact – and then informed the officer that he consented to officers entering and searching. § 87(2)(b) informed the officer with whom he spoke that the apartment in question was rented as an Airbnb. § 87(2)(b) never indicated that he resided in § 87(2)(b) Rather, § 87(2)(b) informed the officer that he was the property manager. The officer never asked if § 87(2)(b) resided there. § 87(2)(g)

§ 87(2)(b) believed the officer sent him a document to sign but was uncertain. § 87(2)(b) also gave the officer the access codes to the building and § 87(2)(b) § 87(2)(b) agreed to forward his correspondence with the officer in question, but as of the writing of this report no such documentation has been received.

The courts have addressed similar circumstances to those in question here. In *People v. Ponto*, 103 A.D.2d 573 (1984) (Board Review 07), a landlord learned that their tenant, the defendant, had a firearm in his room. The landlord called the police and unlocked the defendant's room, at which point police entered, observed the gun, and seized it. At no point had the police obtained a search warrant. Per the ruling in *Ponto*, the tenant in question – the defendant – maintained a reasonable expectation of privacy with regard to the rented space, and the landlord had no authority to consent to the officers' entry. That a landlord has access to a space via a key – or, in this case, a keycode – does not indicate that the landlord is “free to just walk in and out of [the space] at will.” Rather, the landlord's ability to access the space is merely consistent with his or her position as landlord. Further, the *Ponto* ruling notes that although the defendant was in arrears in his rental payments, he had not yet been evicted, and therefore still retained a reasonable expectation of privacy with respect to the leased premises.

People v. McFall, 72 A.D.3d 1128 (2010) addressed similar circumstances in a hotel, establishing that the occupant of a hotel room is entitled to Fourth Amendment protection during the rental period and that a hotel manager had no authority to consent to a search a hotel guest's room (Board Review 08).

§ 87(2)(g) [REDACTED]

[REDACTED] it is recommended that **Allegations B and D** be closed as **Substantiated**.

§ 87(2)(g) [REDACTED] it is recommended that **Allegations A and C** be closed as **Subject Retired**.

Allegation (E) Force: At § 87(2)(b) in Brooklyn, officers pointed their guns at individuals.

§ 87(2)(b) stated that officers entered the apartment carrying “assault guns” with attached flashing lights and that unspecified officers pointed guns at partygoers' faces before pointing their guns down toward the floor. § 87(2)(b) did not describe the officers in question or provide further detail about the civilians at whom officers pointed their guns.

Neither § 87(2)(b) nor § 87(2)(b) made any allegation in regards.

Sgt. Zanca stated that he did not enter with his gun drawn. He denied ever drawing his gun or pointing it at any civilian during this incident. He did not remember seeing any officer with a gun drawn or pointing a gun at any civilian.

Det. Zorrilla did not remember if he entered with his gun drawn or if he pointed a gun at any civilian. He did not know if any other officer pointed a gun at any civilian during the course of this incident.

Det. Lamariana also denied entering the location with his gun drawn and denied ever pointing his gun at anyone. He did not know whether other officers entered the location with their firearms drawn or whether they pointed their firearms at anyone.

As noted, there is not video associated with this case.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Officers Unidentified**.

Allegation (F) Discourtesy: At § 87(2)(b) in Brooklyn, an officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that from the bathroom, he heard an officer say to § 87(2)(b) “Shut the fuck up and get on the floor.” § 87(2)(b) did not see the officer who made this remark.

As noted, § 87(2)(b) did not provide any statement. Neither § 87(2)(b) nor § 87(2)(b) made any allegation in regards.

Sgt. Zanca, Det. Zorrilla, and Det. Lamariana each denied making this statement or hearing any other officer make this statement.

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **Officer Unidentified**.

Allegation (G) Force: At § 87(2)(b) in Brooklyn, Detective John Lamariana used physical force against § 87(2)(b)

Allegation (H) Force: At § 87(2)(b) in Brooklyn, an officer used physical force against § 87(2)(b)

Allegation (I) Force: At § 87(2)(b) in Brooklyn, Detective John Lamariana used physical force against § 87(2)(b)

Allegation (J) Force: At § 87(2)(b) in Brooklyn, an officer used physical force against § 87(2)(b)

§ 87(2)(b) stated that when § 87(2)(b) asked Det. Lamariana and another unidentified officer why they had entered the apartment, the officers told § 87(2)(b) that they would explain later. These officers ordered § 87(2)(b) to the ground, but § 87(2)(b) remained standing. Det. Lamariana and the other officer took hold of § 87(2)(b) and “threw” him down to the ground. Once § 87(2)(b) was on the ground, Det. Lamariana and the other officer punched § 87(2)(b) on the head with closed fists. § 87(2)(b) did not know how many times the officers

struck § 87(2)(b). The officers then handcuffed § 87(2)(b) who ultimately sustained bruising resulting from the punches. § 87(2)(b) described both Det. Lamariana and the other officer as males, standing 6'2", with "large" builds and bald heads.

§ 87(2)(b) stated that from his position in the basement, he heard what he later learned was officers striking § 87(2)(b) and throwing him to the floor. However, § 87(2)(b) did not witness this struggle.

Likewise, § 87(2)(b) stated that from the bathroom, he heard § 87(2)(b) plead with officers to stop striking him. § 87(2)(b) heard § 87(2)(b) say, "I'm not resisting. Can you stop hitting me?" The sounds of a struggle lasted approximately three to four minutes.

Det. Lamariana did not clearly recall his interaction with § 87(2)(b). He stated that when he entered the location, he saw approximately eight individuals inside. Officers issued verbal commands such as "Police - don't move" to the occupants. One or two individuals were non-compliant and resisted being detained by tensing their arms and making it difficult for officers to pull their hands behind their back. Everyone at the location was either black or Hispanic, and one of the males who resisted being detained was a black male. Det. Lamariana did not remember if this individual was § 87(2)(b) and was unfamiliar with that name. Det. Lamariana did not recall which individuals specifically were handcuffed, though he stated a number of them were. Det. Lamariana did not recall what other, if any, specific actions these individuals took to avoid handcuffing besides tensing their arms and refusing to place their arms behind their backs.

Det. Lamariana did not recall whether he took any individual to the ground and did not recall whether he struggled with anyone who was on the ground. He recalled individuals being on the ground but did not remember how they were taken to the ground or who took them to the ground. He used the "minimal" amount of force while handcuffing individuals but could not describe any struggle in detail. Det. Lamariana did not recall punching anyone at any point. He did not recall whether Sgt. Weber, PO Zorrilla or Sgt. Zanca were involved in detaining any individual who struggled or resisted arrest. He did not recall whether he issued any specific verbal commands during a struggle but stated that generally, he would instruct someone with whom he was struggling to give up their hands.

Det. Lamariana was identified as being involved in the struggle with § 87(2)(b) via TRI reports (Board Review 09). According to a report prepared by Sgt. Weber, "At TPO during a surveillance operation, interaction with perpetrator § 87(2)(b) occurred in which the above individual resisted arrest and forcible take down occurred. No injuries to the individual were complained of, or observed. A firearm was recovered at the scene" (Board Review 09 "TRI 22"). This report lists only Det. Lamariana as involved in the struggle and lists only Det. Zorrilla and Sgt. Weber as being on scene at the time. A second version of the report, apparently prepared by Det. Lamariana, notes the use of hand strikes and a forcible takedown against § 87(2)(b) to overcome resistance or aggression (Board Review 09; "TRI 22-2").

Det. Lamariana reviewed these documents during his CCRB interview and stated that he did not remember preparing a TRI report in regards. He believed that he might have provided Sgt. Weber with the information needed for Sgt. Weber to prepare a TRI Report on his behalf. Det. Lamariana stated that although he recalled struggling with an individual, apparently identified as § 87(2)(b), he did not recall using hand strikes or taking him to the ground. He also did not recall speaking with Sgt. Weber about this incident.

Note that where § 87(2)(b) described Det. Lamariana as standing 6'2" tall and bald, he is in fact

5'0" tall and has a full head of hair (photo visible in CTS MOS tab).

Sgt. Zanca denied witnessing any officer engage in any use of force against § 87(2)(b) as Sgt. Zanca went directly into the basement to pursue § 87(2)(b). Sgt. Zanca did not witness Det. Lamariana take any individual to the ground or punch any individual. The individuals who were arrested were ultimately transported to the 77th Precinct stationhouse for arrest processing, where Sgt. Zanca learned that Det. Lamariana had used force against an individual and that a TRI was being generated, but Sgt. Zanca had not witnessed the interaction in question. Sgt. Zanca also never saw any injury on § 87(2)(b) person.

Det. Zorrilla stated that he did not witness the struggle between Det. Lamariana and § 87(2)(b) but learned afterward from Det. Lamariana that § 87(2)(b) had resisted arrest. Det. Zorrilla did not know how § 87(2)(b) had resisted arrest or if any officer had used force against § 87(2)(b). He did not observe any injury on § 87(2)(b) person. He did not learn in detail about the struggle – only that § 87(2)(b) resisted arrest.

Per NYPD Patrol Guide Procedure 221-01, an officer may use force may when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Further, any application or use of force must be reasonable under the circumstances (Board Review 10).

§ 87(2)(g)

It is therefore recommended that **Allegations G and I** be closed as **Unsubstantiated**.

The TRI reports note the involvement only of Det. Lamariana, and the other officers interviewed did not recall or denied witnessing the struggle in question. § 87(2)(g)

it is recommended that **Allegations H and J** be closed as **Officer Unidentified**.

Allegation (K) Abuse of Authority: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber frisked § 87(2)(b)

Allegation (L) Abuse of Authority: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber frisked § 87(2)(b)

Allegation (M) Abuse of Authority: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber frisked § 87(2)(b)

Allegation (N) Abuse of Authority: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber frisked individuals.

Allegation (O) Abuse of Authority: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber searched § 87(2)(b)

Allegation (P) Abuse of Authority: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber searched § 87(2)(b)

Allegation (Q) Abuse of Authority: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber searched § 87(2)(b)

Allegation (R) Abuse of Authority: At § 87(2)(b) in Brooklyn, Sergeant Michael Weber searched individuals.

§ 87(2)(b) and § 87(2)(b) collectively described the officers frisking and searching every civilian partygoer.

Per § 87(2)(b) officers handcuffed every partygoer and brought them downstairs to the basement, where officers searched through the partygoers' belongings. One by one, officers released the partygoers from handcuffs and allowed them to exit the building. § 87(2)(b) who was arrested for possession of a firearm, remained with the officers and was then transported to the 77th Precinct stationhouse.

§ 87(2)(b) stated that an officer opened and inspected the contents of her bag and § 87(2)(b). Additionally, a female officer arrived on scene and frisked § 87(2)(b) and § 87(2)(b). Per § 87(2)(b), § 87(2)(b) was in possession of an unspecified quantity of marijuana. Additionally, § 87(2)(b) observed other marijuana in the apartment, and, at some point, observed marijuana in a bathtub. Officers reviewed every civilian's identification and checked for warrants. Ultimately, an officer informed § 87(2)(b) and the other civilians who were not arrested that they would receive summonses for the possession of marijuana.

§ 87(2)(b) stated that an officer handcuffed him in a basement bathroom. This officer frisked § 87(2)(b) and reached into § 87(2)(b) pants pockets. The officer also removed all the contents from § 87(2)(b) bag, recovering approximately one ounce of marijuana. The officer placed § 87(2)(b) marijuana in the bathtub. § 87(2)(b) was then moved into the living room, where officers had gathered other partygoers and subsequently searched through the partygoers' bags and clothing. Officers collected all the recovered marijuana from the various partygoers and placed it together in the same bathtub. § 87(2)(b) did not recall the total amount of marijuana officers recovered. No other narcotics were recovered from any of the partygoers. Every partygoer who was not arrested was ultimately issued a summons for possession of marijuana.

Det. Zorrilla stated that he observed marijuana in plain view "all over" the apartment. Marijuana was illegal at this time. However, no civilian acknowledged ownership of the marijuana. As such, all civilians present who were not arrested in connection with the gun were issued summonses for marijuana. They all received summonses because the officers could not establish who the owned the marijuana. No one departed without receiving a summons for marijuana or being arrested for the gun. This was at Sgt. Weber's discretion.

According to Det. Zorrilla, although every civilian present could have been arrested for possession of marijuana, it was not feasible for officers to process this number of arrests at the stationhouse. As such, those who might have been arrested only for possession of marijuana were instead released with summonses in lieu of arrest.

Every civilian present was frisked and searched at Sgt. Weber's discretion. This took place because every civilian was technically under arrest for the possession of marijuana. The searches were incident to arrest. The frisks and searches were not conducted in response to any specific observations of bulges or other indicia that individuals might be armed. They were frisked and searched only incident to arrest.

Sgt. Zanca did not remember if individuals other than § 87(2)(b) and § 87(2)(b) were frisked or searched. He did not know if Sgt. Weber gave any such direction. Sgt. Zanca, for his part, did not give any such instruction. He was unaware of any condition which would require that all partygoers be frisked and searched. Sgt. Zanca also did not remember if individuals other than § 87(2)(b) and § 87(2)(b) were issued summonses for any reason. During the CCRB interview, Sgt. Zanca was informed that Det. Zorrilla described summonses being issued to other partygoers because there was unclaimed marijuana in the apartment. Sgt. Zanca did not independently recall this. He did not remember being involved in this decision and did not know if Sgt. Weber made this decision.

The CCRB obtained copies of eleven summonses for possession of marijuana, issued by Det. Zorrilla to the various partygoers who were not arrested § 87(2)(b)

Additionally, officers vouchered vegetative alleged marijuana § 87(2)(b) and a marijuana cigarette § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegations K through R** be closed as **Subject Retired**.

Allegation (S) Abuse of Authority: At § 87(2)(b) in Brooklyn, officers threatened to seize § 87(2)(b) property.

§ 87(2)(b) stated that after the officers entered the apartment, she received a phone call from her mother and answered the call. § 87(2)(b) spoke briefly to her mother when an officer approached and informed her that she was not allowed to be on her phone. § 87(2)(b) ended the call. § 87(2)(b) later attempted to speak with her mother on the phone again, but unspecified officers informed her that she was not allowed to use her phone. These officers told § 87(2)(b) that they would take her phone away from her if she continued to use it. § 87(2)(b) did not describe the officers in question.

Neither § 87(2)(b) nor § 87(2)(b) corroborated the allegation in question.

Sgt. Zanca, Det. Zorrilla, and Det. Lamariana each stated that they did not remember any civilian attempting to use a phone, warning that they could take a phone away from a civilian, or seeing another officer issue such warning.

§ 87(2)(g)

It is therefore recommended that **Allegation S** be closed as **Officers Unidentified**.

Allegation (T) Abuse of Authority: At § 87(2)(b) in Brooklyn, officers damaged individuals' property.

Allegation (U) Offensive Language: An officer made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation (V) Discourtesy: At § 87(2)(b) in Brooklyn, an officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that unspecified officers “threw out” many partygoer’s personal items, including bags, clothes, and the birthday cake which § 87(2)(b) had purchased for § 87(2)(b). § 87(2)(b) did not specify whose property was discarded, nor did he describe the specific officers who allegedly discarded property.

§ 87(2)(b) also stated that an unspecified officer referred to him as a “bitch” and as a “pussy.” Again, § 87(2)(b) did not describe the officer who allegedly made these remarks.

Neither § 87(2)(b) nor § 87(2)(b) corroborated the allegations in question.

Sgt. Zanca, Det. Zorrilla, and Det. Lamariana each denied discarding any civilian’s property or making the alleged discourteous and offensive remarks. Additionally, they denied witnessing any

other officer discarding property or making these remarks.

§ 87(2)(g)

It is therefore recommended that **Allegations T, U, and V** be closed as **Officers Unidentified**.

Allegation (W) Abuse of Authority: At the 77th Precinct stationhouse, Detective Antonio Zorrilla seized § 87(2)(b) property.

Allegation (X) Abuse of Authority: At the 77th Precinct stationhouse, Detective Antonio Zorrilla seized § 87(2)(b) property.

§ 87(2)(b) stated that at the 77th Precinct stationhouse, where his arrest was processed, officers removed his hooded sweatshirt, a Louis Vuitton belt, and his shoes. § 87(2)(b) was informed that these items would be “put aside,” but § 87(2)(b) later learned that his sweatshirt, belt, and shoes were “thrown out,” and these items were never returned to him.

Det. Zorrilla, § 87(2)(b) Arresting Officer, confirmed that he processed § 87(2)(b) arrest at the 77th Precinct stationhouse. He stated that he vouchered all of § 87(2)(b) property. He did not discard any property belonging to § 87(2)(b) such as a sweatshirt, a Louis Vuitton belt, or shoes.

Sgt. Zanca was present during arrest processing at the 77th Precinct stationhouse and denied having any knowledge of § 87(2)(b) property (a hooded sweatshirt, a belt, and a pair of shoes) being discarded rather than vouchered. He did not supervise that aspect of arrest processing.

The CCRB obtained property vouchers prepared by Det. Zorrilla regarding § 87(2)(b) personal property § 87(2)(b). One voucher pertains to § 87(2)(b) sweatshirt, and the other to his Apple Watch. The voucher for the Apple Watch reveals that it was vouchered as safekeeping, and therefore was returned to § 87(2)(b). The voucher for the sweatshirt reveals that it was vouchered as arrest evidence in connection with the firearm, and therefore would not have been returned to § 87(2)(b). However, the vouchers make no reference to § 87(2)(b) belt or shoes.

The CCRB did not obtain stationhouse video which might reveal what property was in fact removed from § 87(2)(b). As noted, no BWC videos were recorded regarding this incident or the associated arrests.

§ 87(2)(g) the voucher pertaining to the sweatshirt, confirming that it was vouchered as arrest evidence § 87(2)(g) § 87(2)(g)

and it is therefore recommended that

Allegation W be closed as **Exonerated**. § 87(2)(g)

It is therefore recommended that **Allegation X** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 12).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 13).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 14).

- _____

Mediation, Civil, and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 8

Investigator: Samuel Ross SI Samuel Ross 06/15/2022
Signature Print Title & Name Date

Squad Leader: Ethan De Angelo IM Ethan De Angelo 6/15/2022
Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____